

AMENDMENT TO PREMERAFirst PROVIDER AGREEMENT

The Agreement entered into by and between PremeraFirst, Inc., which serves as the contracting agent for Premera Blue Cross, LifeWise Health Plan of Washington, LifeWise Assurance Co. and Premera Blue Cross HMO (“Intermediary”) and Provider is hereby amended effective January 15, 2025. This amendment applies to all subcontracts entered into by Provider for the provision of Covered Services under the Agreement. Provider must ensure that all such subcontractors receive a copy of this Amendment. This Amendment is in addition to the Agreement and does not replace or supersede the Agreement. The Agreement, except as specifically modified herein, shall remain in effect.

The Agreement is amended as follows:

1. **PART 1, Section 1.11, (“Plan”)**: this section is deleted in its entirety and replaced with the following:

“**Plan** means a health care services contractor, insurer, health maintenance organization or other entity listed in the attached Exhibits 1A-1D.”

2. **Exhibit 1D, (“Premera Blue Cross HMO”)**: a new Exhibit 1D is added to the Agreement.
3. **PART 4, Section 4.06, (“Contract—Participant”)**: a new Section 4.06 is added to the Agreement as follows:

1. Subject to subsection 2 of this section:

- a. Every contract between Premera Blue Cross HMO and its participating providers of health care services shall be in writing; and
- b. In the event Premera Blue Cross HMO fails to pay for health care services as set forth in this Agreement, the enrolled participant shall not be liable to the Provider for any sums owed by Premera Blue Cross HMO; and
- c. This Section shall survive termination of the Agreement.

2. The provisions of subsection 1 of this section shall not apply:

- a. To emergency care from a provider who is not a participating provider;
- b. To out-of-area services;
- c. To the delivery of covered pediatric oral services that are substantially equal to the essential health benefits benchmark plan; or
- d. In exceptional situations approved in advance by the commissioner, if Premera Blue Cross HMO is unable to negotiate reasonable and cost-effective participating provider contracts.

3. No participating provider, or insurance producer, trustee, or assignee thereof, may maintain an action against an enrolled participant to collect sums owed by the health maintenance organization.”

4. **PART 4, Section 4.07, (“Plan for Handling Insolvency”)**: a new Section 4.07 is added to the Agreement as follows:

“In the event of Premera Blue Cross HMO’s insolvency and in order to allow for the continuation of benefits for the duration of the agreement period for which premiums have been paid and continuation of benefits to members who are confined on the date of insolvency in an inpatient facility until their discharge or expiration of benefits, Provider agrees to provide services for the duration of the period

after Premera Blue Cross HMO's insolvency for which premium payment has been made and until the enrolled participants' discharge from inpatient facilities"

The effective date of this amendment is January 15, 2025. All other terms and conditions of the Agreement remain unchanged, except as specified in this or any other amendment to the Agreement.

PREMERAFirst, INC.

BY:



Signature

Jennifer Sanders

Print or Typed Name

VP, Provider Network
Management and Solutions

Title